

RESIDENT'S SELECTION OF PERSONAL REPRESENTATIVE DUE TO INCAPACITY, DEATH, OR ABANDONMENT ADDENDUM

Addendum Date: _____ ["Management"] as Owner of _____
as Agent for the Owner of _____

["Property Name"] enters into this Resident's Selection of Personal Representative Due to Incapacity, Death, or Abandonment Addendum to the Rental Contract ["the Lease"] with _____

["Resident"], pertaining to House / Unit No. _____ located at _____

["Address"]. This addendum is part of the Rental Contract dated _____ ["Date of Lease"].

Resident agrees that Management shall have the right to take action as provided in this Addendum without the necessity of a court order to obtain possession of the house by contacting Resident's Personal Representative to remove Resident's property in the event a Resident dies, is incapacitated, or abandoned the house or abandoned his personal property and belongings.

This provision shall apply if:

1. the Resident was the sole tenant occupying the house;
2. the Resident is deceased or incapacitated or the house is abandoned;
3. rent or other charges are due and unpaid; and
4. Management has not been provided notice of a court appointed legal representative or guardian for the estate or property of the Resident.

Management shall have the right to assume that no legal representative of the Resident's estate or no legal guardian exists if Management is not provided a certified copy of a legal document or court order regarding a petition for administration, no administration necessary, probate, or guardianship of the Resident's estate within 15 days of the Resident's death or incapacitation or abandonment of the house. Management is not required to contact or attempt to contact the legal heirs of the Resident and may rely on the Resident's authorization contained in this Addendum.

Management shall have the right to enter the house, remove and store Resident's personal property and possessions, or leave the personal property in the house.

Management may, but is not required to, contact Resident's Personal Representative specified below to take possession of Resident's personal property in the house, remove the property, and return possession of the house to Management.

Management reserves all rights at law and equity to obtain possession of the house by filing a dispossessory proceeding but may obtain possession as provided in this addendum. Management is not required to elect which remedy or procedure it will use to obtain possession of the house or dispose of Resident's personal property.

Resident authorizes Management to contact the following Personal Representative to take possession of Resident's personal property and possessions. Management may give the Personal Representative access to the house to remove all personal property and return possession to Management. Management shall have no liability for delivering access and possession of Resident's Personal Property to the Personal Representative upon confirmation of the Personal Representative's identity.

Neither Resident's death nor incapacity shall revoke this designation which constitutes a power of attorney coupled with an interest.

Resident hereby designates the following persons as his Personal Representative or Alternate Personal Representative to obtain possession of his personal property and possessions:

Resident 1:

1. Resident's Personal Representative Name: _____
Address: _____ Relationship to Resident: _____
Phone: _____ E-mail: _____
2. Resident's Personal Representative Name: _____
Address: _____ Relationship to Resident: _____
Phone: _____ E-mail: _____

Resident 2:

3. Resident's Personal Representative Name: _____
Address: _____ Relationship to Resident: _____
Phone: _____ E-mail: _____
4. Resident's Personal Representative Name: _____
Address: _____ Relationship to Resident: _____
Phone: _____ E-mail: _____

Resident 3:

5. Resident's Personal Representative Name: _____
Address: _____ Relationship to Resident: _____
Phone: _____ E-mail: _____
6. Resident's Personal Representative Name: _____
Address: _____ Relationship to Resident: _____
Phone: _____ E-mail: _____

Resident 4:

7. Resident's Personal Representative Name: _____
Address: _____ Relationship to Resident: _____
Phone: _____ E-mail: _____
8. Resident's Personal Representative Name: _____
Address: _____ Relationship to Resident: _____
Phone: _____ E-mail: _____

Resident 5:

9. Resident's Personal Representative Name: _____
Address: _____ Relationship to Resident: _____
Phone: _____ E-mail: _____
10. Resident's Personal Representative Name: _____
Address: _____ Relationship to Resident: _____
Phone: _____ E-mail: _____

Resident 6:

11. Resident's Personal Representative Name: _____
Address: _____ Relationship to Resident: _____
Phone: _____ E-mail: _____
12. Resident's Personal Representative Name: _____
Address: _____ Relationship to Resident: _____
Phone: _____ E-mail: _____

Signatures of Parties:**Management**

Name of Management

By: _____
Signature of Management Representative Name

As: _____ (Job Title)

Residents

Printed Name of Resident: (Resident Signature)

Printed Name of Resident: (Resident Signature)

Printed Name of Resident: (Resident Signature)

Printed Name of Resident: (Resident Signature)

Printed Name of Resident: (Resident Signature)

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